

FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SB1319 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Reading Clerk

Amendment submitted by: Chris Sneed

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR ENGROSSED

SENATE BILL NO. 1319

By: Frix of the Senate

and

Sneed, Boles, and Bashore
of the House

FLOOR SUBSTITUTE

An Act relating to Corporation Commission; requiring certain process be established for cities and counties to seek certain reimbursement; requiring city or county to begin certain process before requesting reimbursement; providing fair market value be determined by city or county; providing process for determining valuation; requiring application to request use of certain funds; prohibiting certain fee; authorizing Corporation Commission to hear application; requiring Commission make certain ruling on eligibility; prohibiting homeowner payments from certain fund; requiring Commission comply with certain requirements; requiring certain remediation and abatement using state plugging funds; requiring city or county sell property and return proceeds to certain fund; requiring homeowner act in good faith; requiring homeowner provide certain copies of claims; requiring certain proceeds be reimbursed to certain fund; requiring homeowner be held liable if acting in bad faith; requiring Attorney General bring action in certain cases; providing for referral to the Department of Environmental Quality; requiring certain reimbursement to Department of Environmental Quality; requiring the promulgation of certain rules by Commission; creating the Remediation Assistance Revolving Fund; establishing revolving fund characteristics; declaring the funds appropriated;

1 providing for codification; and declaring an
2 emergency.

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4
5 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

6 SECTION 1. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 180.14 of Title 17, unless there
8 is created a duplication in numbering, reads as follows:

9 A. 1. To alleviate new and ongoing serious environmental
10 emergencies, a process shall be established to allow cities or
11 counties to seek reimbursement after acquiring title at fair market
12 value and removing a residential home that has become contaminated
13 by a substance including or related to brine or oil. The city or
14 county shall begin the process to acquire the residential home prior
15 to requesting reimbursement.

16 2. Fair market value shall be determined by the city or county
17 and shall reflect the property's condition prior to the
18 environmental emergency. Such value shall be established as the
19 greater of either the most recent valuation of the property by the
20 county assessor or a comparative market analysis based on sales of
21 similar properties occurring within the preceding three to six
22 months.

23 B. 1. To request the use of funds from the Remediation
24 Assistance Revolving Fund created in Section 2 of this act, the city

1 or county shall file an application to be considered by the
2 Corporation Commission. No fee shall be required to file the
3 application. The Corporation Commission may hear the application
4 with or without notice.

5 2. After considering the evidence presented, the Corporation
6 Commission shall rule on the application and determine whether the
7 city or county is eligible for reimbursement.

8 3. The Remediation Assistance Revolving Fund shall not be used
9 to pay the homeowner for any damages.

10 4. Prior to any reimbursement from the Remediation Assistance
11 Revolving Fund, the Corporation Commission shall comply with the
12 requirements set forth in the Oklahoma Central Purchasing Act,
13 relating to emergency acquisitions, Section 85.41A of Title 74 of
14 the Oklahoma Statutes.

15 5. Once the residence is removed, if the presence of a well is
16 confirmed, the Corporation Commission shall remediate and abate the
17 environmental emergency using state plugging funds. After the
18 property is remediated, the city or county shall sell the property
19 at fair market value, and return all proceeds, after expenses, to
20 the Remediation Assistance Revolving Fund.

21 6. The homeowner shall in good faith pursue all available
22 homeowner's insurance claims and damage claims and ensure that the
23 Remediation Assistance Revolving Fund is listed as either the
24 primary creditor or beneficiary, or both, for all payment of claims.

1 The homeowner shall provide copies of these claims to the
2 Corporation Commission upon request. All proceeds received by the
3 homeowner not related to damaged personal property shall be
4 reimbursed to the Remediation Assistance Revolving Fund.

5 C. The homeowner shall be held personally liable if the
6 Remediation Assistance Revolving Fund is not reimbursed consistent
7 with this act or if all available homeowner's insurance claims and
8 damage claims are not pursued in good faith. The Attorney General
9 shall bring an action in the district court in and for Oklahoma
10 County, State of Oklahoma, to enforce compliance by the homeowner or
11 to seek reimbursement to the Remediation Assistance Revolving Fund.

12 D. If, at any time, the environmental emergency is determined
13 to not include or be related to brine or oil, or it is determined to
14 be a naturally occurring breakout, the matter shall be referred to
15 the Department of Environmental Quality. If costs of remediation
16 and abatement are expended by the Department of Environmental
17 Quality, such costs shall be reimbursed by the Remediation
18 Assistance Revolving Fund if no other eligible funding sources are
19 available.

20 E. The Corporation Commission shall promulgate rules to
21 effectuate the provisions of this section.

22 SECTION 2. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 180.15 of Title 17, unless there
24 is created a duplication in numbering, reads as follows:

1 There is hereby created in the State Treasury a revolving fund
2 for the Corporation Commission to be designated the "Remediation
3 Assistance Revolving Fund". The fund shall be a continuing fund,
4 not subject to fiscal year limitations, and shall consist of all
5 monies received by the Corporation Commission from any public or
6 private donations, contributions, and gifts received for the benefit
7 of the fund and any amounts appropriated by the Legislature
8 designated for deposit in the fund. All monies accruing to the
9 credit of the fund are hereby appropriated and may be budgeted and
10 expended by the Corporation Commission or the Department of
11 Environmental Quality for the purpose of providing remediation
12 assistance as provided for in Section 1 of this act. Expenditures
13 from the fund shall be made upon warrants issued by the State
14 Treasurer against claims filed as prescribed by law with the
15 Director of the Office of Management and Enterprise Services for
16 approval and payment.

17 SECTION 3. It being immediately necessary for the preservation
18 of the public peace, health or safety, an emergency is hereby
19 declared to exist, by reason whereof this act shall take effect and
20 be in full force from and after its passage and approval.

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22 60-2-17498 JBH 04/16/26

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